

25STCV06899 25STCV06899

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Division: Civil Law and Motion

Department: 414

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Case Number: 25STCV06899 Hearing Date: August 13, 2026 Dept: 414

25STCV06899

Hernandez v. Aly, et al.

Thursday,

August 13, 2026

[TENTATIVE]

ORDER PLAINTIFF'S MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, AS TO DEFENDANT, TAREK ALY; REQUEST FOR IMPOSITION OF SANCTIONS (4424)

[TENTATIVE]

ORDER PLAINTIFF'S MOTION TO COMPEL RESPONSES TO REQUESTS FOR

PRODUCTION

OF DOCUMENTS, SET ONE, AS TO DEFENDANT TAREK ALY; REQUEST FOR

MONETARY

SANCTIONS (0849)

I.

BACKGROUND

This is an action for

breach of implied warranty of habitability and related claims for Defendants'

alleged failure to remedy conditions in Plaintiff's residential unit. Plaintiff

brings two motions to compel responses to special interrogatories and request

for production of documents by Defendant, Tarek Aly ("Aly"). Plaintiff requests

imposition of sanctions for fees incurred in preparing two motions. Plaintiff served

all discovery at issue on Defendant on April 11, 2026. Defendant did not respond by May 13, 2026, when responses were due.

Both motions refer to a property inspection noticed to take place on April 11, 2026, at which Defense counsel failed to appear and later claimed he had never received the notice. Defense counsel asked to reschedule but did not ask for the notice to be sent again which suggests to Plaintiff's counsel that defense counsel is not acting in good faith. Plaintiff argues this is consistent with Defendant's broader pattern of non-responsiveness.

Plaintiff does not request an order compelling Defendant to appear for inspection. Rather, Plaintiff asks for an order to compel Defendant to serve initial responses without objection. Defendant did not file oppositions, and Plaintiff did not file corresponding replies.

II. DISCUSSION

Where a party fails to timely respond to interrogatories and a document request, the court has authority to compel a response. (Code Civ. Proc., §2030.290 subd. (b), §2031.300 subd. (b).) Untimely responses result in a waiver of objections. (Code Civ. Proc., § 2030.290 subd. (a), §2031.300 subd. (a).) As Defendant did not serve responses, all objections are waived.

Imposition of sanctions is warranted for Defendant's failure to show substantial justification for failing to comply with discovery obligations. However, the Court denies Plaintiff's request for imposition of additional monetary sanctions on Defendant pursuant to Civil Procedure §2023.050. That section permits additional sanctions of \$1,000 if the Court finds that a party did not respond in good faith to the document request or an inspection demand. There is no evidence that Defendant acted in bad faith in failing to respond to discovery to the document request. The request for inspection is not the discovery at issue in these motions.

III. CONCLUSION

The Court GRANTS both

motions. Defendant, Tarek Aly, is ordered to provide verified responses to Set One of Request for Production of Documents and Special Interrogatories without objections within 10 days.

The Court grants the request for imposition of monetary sanctions for each motion in a reduced amount, as an opposition and reply were not filed. The Court allows allots 30 minutes to appear per motion.

Motion 4424

4 hours x \$575/hour

\$2,300.00

Motion 0849

4 hours x \$575/hour

\$2,300.00

Total sanctions

\$4,600.00

Defendant, Tarek Aly,
and counsel, Bruce Boice, jointly and severally, are ordered to pay Plaintiff's counsel \$4,600.00, within 10 days.